

RECORDING REQUESTED BY
AND RETURN TO:

WEST CAMARILLO COMMUNITY
FACILITIES DISTRICT NO. 1
OF THE CITY OF CAMARILLO

c/o City Clerk
City of Camarillo
601 Carmen Drive
Camarillo, California 93010



20150924-00143255-0 1/18

Ventura County Clerk and Recorder

MARK A. LUNN

09/24/2015 10:45:06 AM

987234 \$.00 CE

NO FEE GOVT CODE 27383

**AMENDMENT NO. 7 OF NOTICE OF SPECIAL TAX LIEN
FOR
WEST CAMARILLO COMMUNITY FACILITIES DISTRICT NO. 1
OF THE CITY OF CAMARILLO**

Reference is hereby made to Amendment No. 6 of Notice of Special Tax Lien ("Amendment No. 6 Notice") relating to the West Camarillo Community Facilities District No. 1 of the City of Camarillo (the "CFD"), and that certain area designated as Annexation No. 6 to the CFD ("Annexation No. 6"), recorded on July 15, 2008, as Document No. 20080715-00108621-0, in the Office of the Ventura County Recorder, State of California, which contains a list of the owners and a description of the parcels of Annexation No. 6, and the then existing version of the Rate and Method of Apportionment ("Revision No. 6 RMA").

Reference is hereby made to Amendment No. 5 of Notice of Special Tax Lien ("Amendment No. 5 Notice") relating to the West Camarillo Community Facilities District No. 1 of the City of Camarillo (the "CFD"), and that certain area designated as Annexation No. 5 to the CFD ("Annexation No. 5"), recorded on August 1, 2002, as Document No. 2002-0182072-00, in the Office of the Ventura County Recorder, State of California, which contains a list of the owners and a description of the parcels of Annexation No. 5, and the then existing version of the and subsequently superceded version of the Rate and Method of Apportionment ("Revision No. 5 RMA").

Reference is hereby made to Amendment No. 4 of Notice of Special Tax Lien ("Amendment No. 4 Notice") relating to the West Camarillo Community Facilities District No. 1 of the City of Camarillo (the "CFD"), and that certain reduction in maximum special tax rates, recorded on November 29, 2000, as Document No. 2000-0188326-00, in the Office of the Ventura County Recorder, State of California, which contains the then existing version of and subsequently superceded version of the Rate and Method of Apportionment ("Revision No. 4 RMA").

Reference is hereby made to Amendment No. 3 of Notice of Special Tax Lien ("Amendment No. 3 Notice") relating to the West Camarillo Community Facilities District No. 1 of the City of Camarillo (the "CFD"), and that certain area designated as Annexation Nos. 2, 3 and 4 to the CFD ("Annexation Nos. 2, 3 and 4"), recorded on September 8, 2000, as Document No. 2000-0143069-00, in the Office of the Ventura County Recorder, State of California, which contains a list of the owners and a description of the parcels of Annexation Nos. 2, 3 and 4, and the then existing version and subsequently superceded version of the Rate and Method of Apportionment ("Revision No. 3 RMA").

Reference is hereby made to the Amendment of Notice of Special Tax Lien ("Amendment No. 2 Notice") relating to the CFD, and that certain area designated as Annexation No. 1 ("Annexation No. 1"), recorded on September 18, 1998, as Document No. 98-160753, in the Office of the Ventura County Recorder, State of California, which contains a list of the owners and a description of the parcels of Annexation No. 1 and the then existing and subsequently superceded version of the Rate and Method of Apportionment ("Revision No. 2 RMA").

Reference is also hereby made to the Amendment of Notice of Special Tax Lien ("Amendment No. 1 Notice") relating to the change in the original Rate and Method of Apportionment of the CFD (the "Revision No. 1 RMA"), recorded on August 10, 1995, as Document No. 95-093965, in the Office of the Ventura County Recorder, State of California, which contains the then existing and subsequently superceded version of the Rate and Method of Apportionment of the CFD.

Reference is also hereby made to the Notice of Special Tax Lien (the "Initial Notice") of the original CFD recorded on April 11, 1990, as Document No. 90-0540556, in the Office of the Ventura County Recorder, State of California, which contains a list of the then existing owners and assessor tax parcel numbers for the parcels of the original CFD and the then existing and subsequently superceded Rate and Method of Apportionment (the "Original RMA").

Pursuant to the requirements of Section 3114.5 and 3117.5 of the Streets and Highways Code and Section 53339.8 of the Government Code, the undersigned clerk of the legislative body of the CFD, hereby gives notice a lien to secure payment if a special tax is hereby imposed by the City Council of the City of Camarillo, County of Ventura, State of California, sitting as the legislative body of the CFD, on that certain property designated as Annexation No. 7 to the CFD ("Annexation No. 7") pursuant to the Current RMA (as defined hereafter). The special tax secured by this lien on Annexation No. 7 is authorized to be levied in an annual basis for the purpose of paying cost of improvements or the principal and interest and other costs associated with bonds and other indebtedness, including reserve funds, the proceeds of which are being used to fund, finance, construct, install, rehabilitate and acquire certain public facilities encompassing drainage and bridge improvements, together with appurtenances and appurtenant work, including equipment, real property and other tangible property with a useful life of five (5) years or longer to serve properties with the CFD and incidental expenses to be incurred therewith.

The special tax is authorized to be levied within Annexation No. 7 which is acknowledged as annexed to the CFD and the lien of the special tax is a continuing lien which shall secure each annual levy of the special tax and which shall continue in force and effect until the special tax obligation is prepaid, permanently satisfied, and canceled in accordance with law or until the special tax ceases to be levied and a notice of cessation of special tax s recorded in accordance with Section 53330.5 of the Government Code.

The Revision No. 6 RMA as shown on Exhibit A to the Amendment No. 6 Notice has been amended as shown on Exhibit A attached hereto (the "Current RMA"), and notice is hereby given that the Current RMA supercedes all previous rates and methods of apportionment for the CFD and is the official rate and method of apportionment for the CFD. The rate and method of apportionment, and manner of collection of the authorized special tax for the Original CFD and Annexation Nos. 1, 2, 3, 4, 5, 6 and 7 are as shown on the Current RMA.

Conditions under which the obligation to pay the special tax may be prepaid and permanently satisfied and the lien of the special tax canceled are as set forth in the Current RMA.

Notice is further given that upon the recording of this notice in the office of the Ventura County Recorder, the obligation to pay the special tax levy shall become a lien upon all nonexempt real property within Annexation No. 7 in accordance with Section 3115.5 of the Streets and Highways Code.

The name(s) of the owner(s) and the assessor tax parcel number(s) of the real property included in Annexation No. 7 and are not exempt from the special tax are as shown on Exhibit B.

Reference is made to the boundary map of Annexation No. 7 of the West Camarillo Community Facilities District No. 1 of the City of Camarillo recorded on September 24, 2015, at Book 20 of Maps and Assessment and Community Facilities Districts at Page 8, as Document No. 2015-~~0924~~-00143254-0, in the office of the County Recorder for the Ventura County, State of California which is now the final boundary map of Annexation No. 7.

Reference is also made to the boundary map of Annexation No. 6 of the West Camarillo Community Facilities District No. 1 of the City of Camarillo recorded on July 15, 2008, at Book 19 of Maps and Assessment and Community Facilities Districts at Page(s) 71, as Document No. 20080715-00108524-0, in the office of the County Recorder for the Ventura County, State of California. Reference is also made to the boundary map of Annexation No. 5 to the West Camarillo Community Facilities District No. 1 of the City of Camarillo recorded on July 29, 2002, at Book 18 of Maps and Assessment and Community Facilities Districts at Page 59, as Document No. 2002-0177844, in the office of the County Recorder for the Ventura County, State of California. Reference is also made to the boundary map of Annexation No. 4 to the West Camarillo Community Facilities District No. 1 of the City of Camarillo recorded on July 10, 2000, at Book 17 of Maps and Assessment and Community Facilities Districts at Page 80, as Document No. 2000-107821, in the office of the County Recorder for the Ventura County, State of California. Reference is also made to the boundary map of Annexation No. 3 to the West Camarillo Community Facilities District No. 1 of the City of Camarillo recorded on July 10, 2000, at Book 17 of Maps and Assessment and Community Facilities Districts at Page 79, as Document No. 2000-107820, in the office of the County Recorder for the Ventura County, State of California. Reference is also made to the boundary map of Annexation No. 2 to the West Camarillo Community Facilities District No. 1 of the City of Camarillo recorded on July 10, 2000, at Book 17 of Maps and Assessment and Community Facilities Districts at Page 78, as Document No. 2000-107819, in the office of the County Recorder for the Ventura County, State of California. Reference is also made to the boundary map of Annexation No. 1 to the West Camarillo Community Facilities District No. 1 of the City of Camarillo recorded on June 23, 1998, at Book 17 of Maps and Assessment and Community Facilities Districts at Page 3, as Document No. 98-102008, in the office of the County Recorder for the Ventura County, State of California. Reference is also made to the boundary map of the original CFD, at Book 13 of Maps and Assessment and Community Facilities Districts at Pages 93-97, in the office of the County Recorder for the Ventura County, State of California.

These eight (8) maps together now constitute the current boundaries of the CFD.

Reference is also made to the boundary map of the Proposed Future Annexation Area to the West Camarillo Community Facilities District No. 1 of the City of Camarillo recorded on June 23, 1998, at Book 17 of Maps and Assessment and Community Facilities Districts at Pages 1-2, as Document No. 98-102007, in the office of the County Recorder for the Ventura County, State of California.

For further information concerning the current and estimated future tax liability of owners or purchasers of real property subject to this special tax lien, interested persons should contact the Director of Finance, City of Camarillo, 601 Carmen Drive, Camarillo, California 93010, (805) 388-5320.

The County Recorder shall endorse upon this Notice the time and date of filing, and shall cross index the notice by reference to the page of the book of maps of assessment and community facilities districts in which the boundary maps of the CFD are filed.

Dated: September 23, 2015



City Clerk of the City of Camarillo, Sitting as the
Legislative Body of the West Camarillo
Community Facilities District No. 1
of the City of Camarillo

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of the document.

Pursuant to Civil Code Section 1181

State of California

County of Ventura

On September 24, 2015, before me, Carrie Weal, Deputy City Clerk for the City of Camarillo, personally appeared Jeffrie Madland, City Clerk for the City of Camarillo, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that she executed the same in her authorized capacity, and that by her signature on the instrument the person or the entity upon behalf of which the person acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

Witness my hand and official seal.

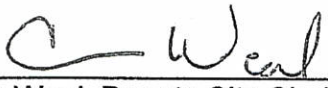

Carrie Weal, Deputy City Clerk



EXHIBIT "A"
AMENDED AND RESTATED
RATE AND METHOD OF APPORTIONMENT
OF SPECIAL TAX
FOR
WEST CAMARILLO COMMUNITY FACILITIES DISTRICT NO. 1
OF THE
CITY OF CAMARILLO

A Special Tax applicable to each Assessor's Parcel in West Camarillo Community Facilities District No. 1 (herein "CFD No. 1") shall be imposed and collected according to the tax liability determination by the City Council of the City of Camarillo acting in its capacity as the legislative body of CFD No. 1 (herein the "Board") through the application of the appropriate amount or rate for Sub Areas, as described below. All of the property in CFD No. 1, unless exempted by law or by the provisions herein, shall be taxed for the purposes, to the extent and in the manner herein provided.

SECTION A -- DEFINITIONS

The terms hereinafter set forth have the following meanings:

"Airport North" means the Assessor's Parcels within Sub Area 6 as shown on Appendix 1 attached hereto.

"Annual Bridge Debt Service" means 110 percent of the gross debt service required in any Fiscal Year to pay the principal and interest on that portion of the bonds issued or obligations incurred by CFD No. 1 to finance construction of the bridge facilities.

"Annual Drainage Debt Service" means 110 percent of the gross debt service required in any Fiscal Year to pay the principal and interest on that portion of the bonds issued or obligations incurred by CFD No. 1 to finance construction of the drainage facilities.

"Annual Special Tax" or "Special Tax" means Special Tax A, B, C, F, G, H, I, J and/or K, depending on the context, or any combination thereof.

"Assessor's Parcel" means a parcel of land designated on maps of the Ventura County Assessor and assigned a discrete identifying number.

"Bridge District" means the Assessor's Parcels within a bridge benefit area, including but not limited to Sub Areas 1,2,3, and 4 as shown on Appendix 1 attached hereto.

"Clubhouse" means all of the facilities at and/or in support of the proposed "Spanish Hills" Golf Course, which includes all Assessor's Parcels within Sub Area 2 as shown on Appendix 1 attached hereto.

"Condominium/Townhouse" means any residential property other than a Single Family Detached unit or the Clubhouse located within Sub Area 3 as shown on Appendix 1 attached hereto.

"Developed Property" means all Assessor's Parcels in CFD No. 1 for which a final subdivision or tract map has been recorded on or before June 1 of the preceding Fiscal Year for the construction of a Condominium, Townhouse, Single Family Detached unit, the Clubhouse facility or a commercial or industrial facility.

"Drainage District" means the Assessor's Parcels within a drainage benefit area, including but not limited to Sub Areas 1, 2, 3, 4, and 6 as shown on Appendix 1 attached hereto.

"Equivalent Dwelling Unit" or "EDU" means a land use equivalency unit based on (i) the generation of sewage effluent relative to effluent generation of a Single Family Detached unit (for sewer facilities) or (ii) the benefit received relative to benefit received by a Single Family Detached unit (for drainage and bridge facilities).

"Freestyle" means the Assessor's Parcels within Sub Area 7 as shown on Appendix 1 attached hereto.

"Fiscal Year" means the period starting on July 1 and ending the following June 30.

"G & H Property" means the southerly portion of Tract Map 5314 constituting approximately 5.7 acres which are located within Sub Area 12 as shown on Appendix 6 attached hereto and which were annexed to the CFD as Annexation No. 6.

"Home Depot" means Assessor's Parcel Nos. 230-0-020-135 and 230-0-020-195 which are located within Sub Area 11 as shown on Appendix 6 attached hereto and which were annexed to the CFD as Annexation #5.

"Gross Acreage" means the gross acreage as shown on the Assessor's Parcel Map, increased for internal and perimeter street right-of-way and public dedications and reduced for public parks, public schools and principal public utility rights-of-way. The special taxes for all commercial/industrial property shall be described in terms of Gross Acreage.

"Hertel" means the Assessor's Parcels located within Sub Area 8 as shown on Appendix 2 attached hereto and which was annexed to the CFD as Annexation #1.

"Koll/Leonard" means the Assessor's Parcels located within Sub Area 5 as shown on Appendix 1 attached hereto.

"Los Posas Car Wash" means Assessor's Parcel Nos. 229-0-010-605 and 229-0-010-625 created as a result of Lot Line Adjustment No. 990017910 and which are located within Sub Area 9 as shown on Appendix 4 attached hereto and which were annexed to the CFD as Annexation #3.

"Prime Retail" means a portion of the property which is located within Sub Area 9 as shown on Appendix 3 attached hereto and which was annexed to the CFD as Annexation #2.

"Residential" means all residential property including Single Family Detached, Condominium/Townhouse unit and the Clubhouse.

"Single Family Detached" means a single family detached residential unit.

"Special Tax A" means the Special Tax determined in accordance with Section C hereof which can be imposed by the Board in any Fiscal Year for Sub Area 5.

"Special Tax B" means the Special Tax determined in accordance with Section C hereof which may be imposed by the Board in any Fiscal Year for Sub Area 6.

"Special Tax C" means the Special Tax determined in accordance with Section C hereof which may be imposed by the Board in any Fiscal Year for Sub Areas 1, 2, 3 and 4.

"Special Tax D" means the Special Tax determined in accordance with Section C hereof for Sub Area 7 to be prepaid prior to issuance of bonds.

"Special Tax E" means the one-time payment by a developer in accordance with Section C hereof.

"Special Tax F" means the Special Tax determined in accordance with Section C hereof which may be imposed by the Board in any Fiscal Year for Sub Area 8.

"Special Tax G" means the Special Tax determined in accordance with Section C hereof which Fiscal Year the Board in any Fiscal Year can impose for Sub Area 9.

"Special Tax H" means the Special Tax determined in accordance with Section C hereof which may be imposed by the Board in any Fiscal Year for Sub Area 10.

"Special Tax I" means the Special Tax determined in accordance with Section C hereof which may be imposed by the Board in any Fiscal Year for Sub Area 11.

"Special Tax J" means the Special Tax determined in accordance with Section C hereof which may be imposed by the Board in any Fiscal Year for Sub Area 12.

"Special Tax K" means the Special Tax determined in accordance with Section C hereof which may be imposed by the Board in any Fiscal Year for Sub Area 13.

"Taxable Property" means all of the area within the boundaries of CFD No. 1 which is not exempt from the Annual Special Tax pursuant to law or Section E below.

"Tract 4227" means the Assessor's Parcels within Sub Area 1 as shown on Appendix 1 attached hereto.

"Tract 4397" means the Assessor's Parcels within Sub Area 4 as shown on Appendix 1 attached hereto.

"Tract 4948" means the Assessor's Parcels within Sub Area 8 as shown on Appendix 2 attached hereto.

"Tract 5127" means the Assessor's Parcels located within Sub Area 10 as shown on Appendix 5 attached hereto and which were annexed to the CFD as Annexation #4.

"Tract 5561" means the Assessor's Parcels located within Sub Area 13 as shown on Appendix 8 attached hereto and which were annexed to the CFD as Annexation #7.

"Undeveloped Property" means all Taxable Property in CFD No. 1 not classified as Developed Property.

SECTION B -- ASSIGNMENT TO SUB AREAS

As of July 1 of each year, all Taxable Property within CFD No. 1 shall be subject to special taxation in accordance with the rate and method of apportionment determined pursuant to Sections C and D below.

For purposes of determining the applicable Annual Special Tax pursuant to Section C, Taxable Property shall be assigned to one of the thirteen Sub Areas (1 through 13) designated in Table 1 below based on the definitions above. CFD No. 1 contains nine developments which have been separated into thirteen (13) Sub Areas. The EDUs have been calculated and assigned to each Sub Area as shown on Table 1.

Table 1
Gross Acreage and Sewer EDUs Assigned to Each Sub Area ⁽¹⁾

Sub Area	Description	EDU's	Gross Acres
1	Tract 4227 - SF	155.0	190.96
2	Clubhouse	28.0	221.29
3	Condominium/Townhouse	72.8	11.40
4	Tract 4397 - SF	81.0	46.16
5	Koll/Leonard	516.0	89.93
6	Airport North	272.0	49.00
7	Freestyle ⁽²⁾	NA.	2.97
8	Hertel	290.0	237.43
9	Prime Retail & LPCW	348.0	62.71
10	Tract 5127	11.0	16.10
11	Home Depot	121.0	21.76
12	G & H Property	32.0	5.70
13	Tract 5561	326.4	47.79

(1) The Drainage component of the Special Tax is spread on a per Gross Acre basis for Sub Areas 1, 2, 3, 4, 6, 9, 10, 11, 12 and 13. The Bridge component of the Special Tax is spread on a per Gross Acre basis for Sub Areas 1, 2, 3, 4, 8, 10, 11, 12 and 13.

(2) No longer applicable; This Sub Area mitigated its special tax obligation prior to bond issuance.

SECTION C -- MAXIMUM SPECIAL TAX RATE

Table 2 shows the maximum Annual Special Tax Rates that may be imposed within CFD No. 1 starting in Fiscal Year 2016-17.

Table 2

Maximum Annual Special Tax Rates

Special Tax	Drainage Component	Bridge Component	Total
A	Not applicable	Not applicable	Not applicable
B	\$881.37/Gross Acre	Not applicable	\$881.37/Gross Acre
C	\$1,304.86/EDU	\$1,023.87/EDU	\$2,328.73/EDU
D	Not applicable	Not applicable	Not applicable
E	One-Time Payment, if applicable	One-Time Payment, if applicable	One-Time Payment, if applicable
F	Not applicable	\$650.07/EDU	\$650.07/EDU
G	\$881.37/Gross Acre	Not applicable	\$881.37/Gross Acre
H	\$1,290.01/EDU	\$1,162.13/EDU	\$2,452.14/EDU
I	\$881.37/Gross Acre	\$794.00/Gross Acre	\$1,675.37/Gross Acre
J	\$881.37/Gross Acre	\$794.00/Gross Acre	\$1,675.37/Gross Acre
K	\$129.05/EDU	\$116.25/EDU	\$245.30/EDU

1. Special Tax A.

Special Tax A applies to each Assessor's Parcel of Taxable Property within Sub Area 5, and with the defeasance of all bonds issued to fund the sewer component Special Tax A is no longer applicable as indicated in Table 2.

2. Special Tax B.

Special Tax B applies to each Assessor's Parcel of Taxable Property within Sub Area 6, and covers Sub Area 6's share of drainage facilities constructed by CFD No. 1.

The drainage component of Special Tax B shall not exceed the maximum amount per Gross Acre shown in Table 2. This maximum amount was computed by (i) dividing the number of Gross Acres within Sub Area 6 as shown in Table 1 by the total number of Gross Acres in the Drainage District, and (ii) multiplying by an estimate of Annual Drainage Debt Service, and (iii) dividing by the number of Gross Acres within Sub Area 6 as shown in Table 1. As shown in Table 2, the drainage component of the Maximum Annual Special Tax B shall be \$881.37 per Gross Acre, which shall only be imposed and collected after bonds or other obligations for the drainage facilities are authorized for issuance and sale by the Board.

As shown in Table 2, the Maximum Annual Special Tax B shall be \$881.37 per Gross Acre.

3. Special Tax C.

Special Tax C applies to each Assessor's Parcel of Taxable Property within Sub Areas 1, 2, 3 and 4, and covers these Sub Areas' share of (i) drainage facilities constructed by CFD No. 1, and (ii) bridge facilities constructed by CFD No. 1. Developed property which constitutes a Single Family Detached unit shall be taxed as one (1.0) EDU. Developed Property which constitutes a

Condominium/Townhouse unit shall be taxed as eight-tenths of one (0.8) EDU. The Clubhouse shall be taxed as twenty-eight (28.0) EDUs. Undeveloped Property within Sub Areas 1, 3 and 4 shall be taxed at the rate shown in Table 2 based on the difference between the EDUs shown in Table 1 and the total EDUs associated with Developed Property in each such Sub Area. Drainage components of the Special Taxes are spread on a per Gross Acre basis for Sub Areas 1, 2, 3 and 4. Bridge components of the Special Taxes are spread on a per Gross Acre basis for Sub Areas 1, 2, 3 and 4.

The drainage component of Special Tax C shall not exceed the maximum amount per EDU shown in Table 2. This maximum amount was computed by (i) dividing the total number of Gross Acres within each Sub Area 1, 2, 3 and 4, as shown in Table 1 by the total number of Gross Acres in the Drainage District, (ii) multiplying by an estimate of Annual Drainage Debt Service, and (iii) dividing by the number of assigned EDUs within each Sub Area 1, 2, 3 and 4, respectively, as shown in Table 1. As shown in Table 2, the drainage component of the Maximum Annual Special Tax C shall be \$1,304.86 per EDU, which shall only be imposed and collected after bonds or other obligations for the drainage facilities are authorized for issuance and sale by the Board.

The bridge component of Special Tax C shall not exceed the maximum amount per EDU shown in Table 2. This maximum amount was computed by (i) dividing the total number of Gross Acres within each Sub Area 1, 2, 3 and 4, respectively, as shown in Table 1 by the total number of Gross Acres in the Bridge District, (ii) multiplying by an estimate of Annual Bridge Debt Service, and (iii) dividing by the number of assigned EDUs within each Sub Area 1, 2, 3 and 4, respectively, as shown in Table 1. As shown in Table 2, the bridge component of the Maximum Annual Special Tax C shall be \$1,023.87 per EDU, which shall only be imposed and collected after bonds or other obligations for the bridge facilities are authorized for issuance and sale by the Board.

As shown in Table 2, the Maximum Annual Special Tax C shall be \$2,328.73 per EDU.

4. Special Tax D.

Special Tax D was to be prepaid prior to the issuance of bonds and is no longer applicable as indicated in Table 2.

5. Special Tax E.

Special Tax E applies to residential developments for which Special Tax Rates have been established or allocated on an EDU basis. The purpose of this tax is to collect moneys sufficient to offset the reduction in future special taxes resulting from an actual reduction in residential density from estimated residential density. This Special Tax E is applied to residential developments only in the event that the actual number of Equivalent Dwelling Units (EDUs) constructed or to be constructed is less than the number of EDUs used in the determination or allocation of the Maximum Special Tax Rates to the subject development.

This Special Tax E shall be applied in the manner hereinafter described, and shall be used to pay debt service, facilities costs and other expenses of CFD No. 1 arising from obligations incurred based on an assigned number of Total EDU's shown in Table 1. If applicable, Special Tax E

shall be paid (i) by the landowner and (ii) on a one-time, lump sum basis, prior to recording a final map or amending an existing final map. Payment of Special Tax E shall be required if and when the number of residential lots and units within the boundaries of a final subdivision or tract map ("the Subject Area") is adjusted and results in a new number of EDUs ("Adjusted EDUs") which is less than the number of assigned EDUs ("Assigned EDUs") within the corresponding Sub Area containing such map, as shown in Table 1.

The amount of Special Tax E for a Subject Area will be computed in accordance with the prepayment methodology described in *Section F – Prepayment of Special Taxes* based on the difference between the Assigned EDUs and the Adjusted EDUs within the Subject Area.

6. Special Tax F.

Special Tax F applies to each Assessor's Parcel of Taxable Property within Sub Area 8, and covers this Sub Area's share of bridge facilities to be constructed by CFD No. 1. Developed property which constitutes a Single-Family Detached unit shall be taxed as one (1.0) EDU. Developed Property which constitutes an attached Condominium/Townhouse unit shall be taxed as eight-tenths of one (0.8) EDU. The Clubhouse shall be taxed as ten (10.0) EDUs. Undeveloped Property within Sub Area 8 shall be taxed at the rate shown in Table 2 based on the difference between the EDUs shown in Table 1 and the total EDUs associated with Developed Property in Sub Area 8.

The bridge component of Special Tax F shall not exceed the maximum amount per EDU shown in Table 2. This maximum amount was computed by (i) dividing the total number of Gross Acres within Sub Area 8, as shown in Table 1 by the total number of Gross Acres in the Bridge District, (ii) multiplying by an estimate of Annual Bridge Debt Service, and (iii) dividing by the number of assigned EDUs within Sub Area 8 as shown in Table 1. As shown in Table 2, the bridge component of the Maximum Annual Special Tax F shall be \$650.07 per EDU, which shall only be imposed and collected after bonds or other obligations for the bridge facilities are authorized for issuance and sale by the Board.

As shown in Table 2, the Maximum Annual Special Tax F shall be \$650.07 per EDU.

7. Special Tax G.

Special Tax G applies to each Assessor's Parcel of Taxable Property within Sub Area 9, and covers Sub Area 9's share of drainage facilities to be constructed by CFD No. 1.

The drainage component of Special Tax G shall not exceed the maximum amount per Gross Acre shown in Table 2. This maximum amount was computed by (i) dividing the number of Gross Acres within Sub Area 9 as shown in Table 1 by the total number of Gross Acres in the Drainage District, and (ii) multiplying by an estimate of Annual Drainage Debt Service, and (iii) dividing by the number of Gross Acres within Sub Area 9 as shown in Table 1. As shown in Table 2, the drainage component of the Maximum Annual Special Tax G shall be \$881.37 per Gross Acre, which shall only be imposed and collected after bonds or other obligations for the drainage facilities are authorized for issuance and sale by the Board.

As shown in Table 2, the Maximum Annual Special Tax G shall be \$881.37 per Gross Acre.

8. Special Tax H.

Special Tax H applies to each Assessor's Parcel of Taxable Property within Sub Area 10 and covers Sub Area 10's share of (i) drainage facilities constructed by CFD No. 1, and (ii) bridge facilities constructed by CFD No. 1. Developed property which constitutes a Single Family Detached unit shall be taxed as one (1.0) EDU. Developed Property which constitutes a Condominium/Townhouse unit shall be taxed as eight-tenths of one (0.8) EDU. Undeveloped Property within Sub Area 10 shall be taxed at the rate shown in Table 2 based on the difference between the EDUs shown in Table 1 and the total EDUs associated with Developed Property in each such Sub Area.

The drainage component of Special Tax H shall not exceed the maximum amount per EDU shown in Table 2. This maximum amount was computed by (i) dividing the total number of Gross Acres within Sub Area 10, as shown in Table 1, by the total number of Gross Acres in the Drainage District, (ii) multiplying by an estimate of Annual Drainage Debt Service, and (iii) dividing by the number of assigned EDUs within Sub Area 10, as shown in Table 1. As shown in Table 2, the drainage component of the Maximum Annual Special Tax H shall be \$1,290.01 per EDU, which shall only be imposed and collected after bonds or other obligations for the drainage facilities are authorized for issuance and sale by the Board.

The bridge component of Special Tax H shall not exceed the maximum amount per EDU shown in Table 2. This maximum amount was computed by (i) dividing the total number of Gross Acres within Sub Area 10, as shown in Table 1 by the total number of Gross Acres in the Bridge District, (ii) multiplying by an estimate of Annual Bridge Debt Service, and (iii) dividing by the number of assigned EDUs within Sub Area 9, as shown in Table 1. As shown in Table 2, the bridge component of the Maximum Annual Special Tax H shall be \$1,162.13 per EDU, which shall only be imposed and collected after bonds or other obligations for the bridge facilities are authorized for issuance and sale by the Board.

As shown in Table 2, the Maximum Annual Special Tax H shall be \$2,452.14 per EDU.

9. Special Tax I.

Special Tax I applies to each Assessor's Parcel of Taxable Property within Sub Area 11 and covers Sub Area 11's share of (i) drainage facilities constructed by CFD No. 1, and (ii) bridge facilities constructed by CFD No. 1.

The drainage component of Special Tax I shall not exceed the maximum amount per Gross Acre shown in Table 2. This maximum amount was computed by (i) dividing the number of Gross Acres within Sub Area 11 as shown in Table 1 by the total number of Gross Acres in the Drainage District, and (ii) multiplying by an estimate of Annual Drainage Debt Service, and (iii) dividing by the number of Gross Acres within Sub Area 11 as shown in Table 1. As shown in Table 2, the drainage component of the Maximum Annual Special Tax I shall be \$881.37 per Gross Acre, which shall only be imposed and collected after bonds or other obligations for the drainage facilities are authorized for issuance and sale by the Board.

The bridge component of Special Tax I shall not exceed the maximum amount per EDU shown in Table 2. This maximum amount was computed by (i) dividing the total number of Gross Acres within Sub Area 11, as shown in Table 1 by the total number of Gross Acres in the Bridge District, (ii) multiplying by an estimate of Annual Bridge Debt Service, and (iii) dividing by the number of Gross Acres within Sub Area 11, as shown in Table 1. As shown in Table 2, the bridge component of the Maximum Annual Special Tax I shall be \$794.00 per Gross Acre, which shall only be imposed and collected after bonds or other obligations for the bridge facilities are authorized for issuance and sale by the Board.

As shown in Table 2, the Maximum Annual Special Tax I shall be \$1,675.37 per Gross Acre.

10. Special Tax J.

Special Tax J applies to each Assessor's Parcel of Taxable Property within Sub Area 12 and covers Sub Area 12's share of (i) drainage facilities constructed by CFD No. 1, and (ii) bridge facilities constructed by CFD No. 1.

The drainage component of Special Tax J shall not exceed the maximum amount per Gross Acre shown in Table 2. This maximum amount was computed by (i) dividing the number of Gross Acres within Sub Area 12 as shown in Table 1 by the total number of Gross Acres in the Drainage District, and (ii) multiplying by an estimate of Annual Drainage Debt Service, and (iii) dividing by the number of Gross Acres within Sub Area 12 as shown in Table 1. As shown in Table 2, the drainage component of the Maximum Annual Special Tax J shall be \$881.37 per Gross Acre, which shall only be imposed and collected after bonds or other obligations for the drainage facilities are authorized for issuance and sale by the Board.

The bridge component of Special Tax J shall not exceed the maximum amount per EDU shown in Table 2. This maximum amount was computed by (i) dividing the total number of Gross Acres within Sub Area 12, as shown in Table 1 by the total number of Gross Acres in the Bridge District, (ii) multiplying by an estimate of Annual Bridge Debt Service, and (iii) dividing by the number of Gross Acres within Sub Area 11 as shown in Table 1. As shown in Table 2, the bridge component of the Maximum Annual Special Tax J shall be \$794.00 per Gross Acre, which shall only be imposed and collected after bonds or other obligations for the drainage facilities are authorized for issuance and sale by the Board.

As shown in Table 2, the Maximum Annual Special Tax J shall be \$1,675.37 per Gross Acre.

11. Special Tax K.

Special Tax K applies to each Assessor's Parcel of Taxable Property within Sub Area 13 and covers Sub Area 13's share of (i) drainage facilities constructed by CFD No. 1, and (ii) bridge facilities constructed by CFD No. 1. Developed property which constitutes a Single Family Detached unit shall be taxed as one (1.0) EDU. Developed Property which constitutes a Condominium/Townhouse unit shall be taxed as eight-tenths of one (0.8) EDU. Undeveloped Property within Sub Area 13 shall be taxed at the rate shown in Table 2 based on the difference between the EDUs shown in Table 1 and the total EDUs associated with Developed Property in each such Sub Area.

The drainage component of Special Tax K shall not exceed the maximum amount per EDU shown in Table 2. This maximum amount was computed by (i) dividing the total number of Gross Acres within Sub Area 13, as shown in Table 1, by the total number of Gross Acres in the Drainage District, (ii) multiplying by an estimate of Annual Drainage Debt Service, and (iii) dividing by the number of assigned EDUs within Sub Area 13, as shown in Table 1. As shown in Table 2, the drainage component of the Maximum Annual Special Tax K shall be \$129.05 per EDU, which shall only be imposed and collected after bonds or other obligations for the drainage facilities are authorized for issuance and sale by the Board.

The bridge component of Special Tax K shall not exceed the maximum amount per EDU shown in Table 2. This maximum amount was computed by (i) dividing the total number of Gross Acres within Sub Area 13, as shown in Table 1 by the total number of Gross Acres in the Bridge District, (ii) multiplying by an estimate of Annual Bridge Debt Service, and (iii) dividing by the number of assigned EDUs within Sub Area 13, as shown in Table 1. As shown in Table 2, the bridge component of the Maximum Annual Special Tax K shall be \$116.25 per EDU, which shall only be imposed and collected after bonds or other obligations for the bridge facilities are authorized for issuance and sale by the Board.

As shown in Table 2, the Maximum Annual Special Tax K shall be \$245.30 per EDU.

SECTION D -- METHOD OF APPORTIONMENT OF THE SPECIAL TAX

Starting in Fiscal Year 2016-17 and for each of the following Fiscal Years, the Board shall determine the amount of money to be collected from Taxable Property in CFD No. 1 in that Fiscal Year. Such amount shall include the sums determined by CFD No. 1 to be necessary to pay for current and future debt service on bonded indebtedness (including redemption of bonds prior to maturity) of CFD No. 1, to create or replenish reserve funds determined necessary by CFD No. 1, and to pay for all administrative, maintenance and construction expenses and any other services paid from Special Tax proceeds.

Beginning in Fiscal Year 2016-17, the Board shall impose the special taxes as follows until the amount of the special taxes equals the amount to be collected:

First: Special Taxes A, B, C, F, G, H, I, J and K shall be imposed in equal percentages on each Assessor's Parcel of Taxable Property, exclusive of property exempt from Special Tax pursuant to Section E below, at up to 91 percent of the Maximum Annual Special Tax Rates shown in Table 2 as provided in Section C.

Special Tax A shall be imposed and collected with respect to each Assessor's Parcel within Sub Area 5 each Fiscal Year as provided in Section C.

Special Tax B shall be imposed and collected with respect to each Assessor's Parcel within Sub Area 6 each Fiscal Year as provided in Section C.

Special Tax C shall be imposed and collected with respect to each Assessor's Parcel within Sub Areas 1, 2, 3 and 4 each Fiscal Year as provided in Section C.

Special Tax F shall be imposed and collected with respect to each Assessor's Parcel within Sub Area 8 each Fiscal Year as provided in Section C.

Special Tax G shall be imposed and collected with respect to each Assessor's Parcel within Sub Area 9 each Fiscal Year as provided in Section C.

Special Tax H shall be imposed and collected with respect to each Assessor's Parcel within Sub Area 10 each Fiscal Year as provided in Section C.

Special Tax I shall be imposed and collected with respect to each Assessor's Parcel within Sub Area 11 each Fiscal Year as provided in Section C.

Special Tax J shall be imposed and collected with respect to each Assessor's Parcel within Sub Area 12 each Fiscal Year as provided in Section C.

Special Tax K shall be imposed and collected with respect to each Assessor's Parcel within Sub Area 13 each Fiscal Year as provided in Section C.

Second: If additional revenues are needed after the first step has been completed, Special Taxes B, C, F, G, H, I, J and K shall be increased in equal percentages above the rates levied pursuant to the First Step above, up to 100 percent of the Maximum Annual Special Tax Rates shown in Table 2 as provided in Section C.

SECTION E -- LIMITATIONS

The Board shall not levy a Special Tax on properties or entities of the state, federal or other local governments except as otherwise provided in Section 53317.3 of the Government Code, pursuant to Section 53340 of the Government Code. This may include the property which is an unmanned utility property, public schools, public parks, or other property owned by a public agency.

SECTION F -- PREPAYMENT OF SPECIAL TAXES

The Board has established a method for landowners and residents to prepay in its entirety the Special Tax levied and which is expected to be levied on their parcel. For any portion of the parcel's special tax obligation for which bonds are outstanding, the prepayment amount includes a parcel's pro rata share of:

- a) the present value of future debt service due during any bond call protection period,
- b) bond principal outstanding subsequent to any bond-call protection period,
- c) a Reserve Fund Credit,
- d) all applicable redemption premiums and bond call fees,
- e) investment loss (negative arbitrage) incurred during any call-protection period, and

- f) administrative and incidental costs incurred by CFD No. 1 with respect to the prepayment and the removal of the lien on such parcel.

For any portion of the parcel's special tax obligation for which bonds have not been issued, the prepayment amount will be based upon the City's most recent estimates regarding the timing and cost of current or future facilities construction or the current Maximum Special Tax Rates.

SECTION G -- ANNEXATIONS INTO CFD No. 1

The Special Tax Rates shown in Table 2 are maximums and shall not be increased. The Board hereby declares its policy and intent that in the event of future annexations, if any, of properties not previously included within the boundaries of CFD No. 1, including areas designated for future annexation, the Maximum Annual Special Taxes in each Fiscal Year following such annexations may be reduced by apportionment below the levels shown in Table 2. Said reductions may occur and take effect without the need for a public hearing or election provided the Board approves by resolution the reduced Maximum Annual Special Taxes and certifies compliance with any and all applicable bond covenants regarding the reduction of Maximum Annual Special Taxes.

SECTION H -- MANNER OF COLLECTION

The Special Taxes for CFD No. 1 shall be collected in the same manner and at the same time as ordinary ad valorem property taxes, except as provided herein, provided however, that CFD No. 1 may collect Special Taxes at a different time or in a different manner if necessary to meet its financial obligations. The Special Tax shall be subject to the same penalties and procedures, sale and lien priority in case of delinquency as is provided for ad valorem taxes. In the event of a delinquency, CFD No. 1 will pursue foreclosure in a timely manner.

SECTION I -- REVIEW/APPEAL COUNCIL

The Board shall establish as part of the proceedings and administration of CFD No. 1 a three-member Review/Appeal Council. Any landowners or residents who desire to protest the accuracy of the amount of the Special Tax imposed on their parcel may file a notice with the Review/Appeal Council, appealing the amount of the Special Tax assigned to such parcel. The Review/Appeal Council shall make determinations relative to the annual administration of the Special Tax pursuant to this Rate and Method of Apportionment of the Special Tax and of any landowner or resident appeals hereunder, as herein specified.

SECTION J -- ISSUANCE OF SERIES OF BONDS

The Board has issued and defeased all bonds issued for construction of the sewer facilities. Additionally, the Board has also bonds for the construction of the drainage facilities and a portion of the bridge facilities. Future series of bonds may be authorized for issuance and sale at such time as determined by the Board for the purpose of construction of bridge facilities as future development and annexations occur. The drainage and bridge components of the Annual Special Tax shall only be imposed after a contract for construction or acquisition agreement for such facilities has been entered into or after bonds or obligations are authorized for issuance and sale by the Board.

EXHIBIT B

LIST OF NAMES AND OWNERS OF TAX PARCELS

<u>Name</u>	<u>Assessor Parcel Number</u>
elacora Springville, LLC	157-0-030-180
elacora Springville, LLC	157-0-030-250
elacora Springville, LLC	157-0-030-365